

		Here, Plaintiff contends that the agreement is so permeated with illegality that it cannot be saved by severance and should not be enforced. (Opp. at pp. 14-15.) The Court agrees. The Court also finds that the illegality taints the central purpose of the contract—i.e., arbitration—such that the contract as a whole cannot be enforced. Notably, Defendant does not address this argument in its reply. At most, Defendant contends that to the extent the Court finds that ¶ 3 contains of the 2023 Agreement contains a waiver of representative PAGA claims, “that single clause can easily be severed from the rest of the enforceable contract in order to effectuate the parties’ intentions to handle disputes through arbitration.” (Reply at p. 7.) Defendant’s failure to address the severability issue more broadly—including whether the agreement may be enforced as a whole when its arbitration provisions’ scope and duration are found unconscionable, and whether such provisions are part of the central purpose of the contract or collateral such that the agreement as a whole may be saved through severance—constitutes a concession on these points. (<i>DuPont Merck Pharmaceutical Co. v. Super. Ct.</i> (2000) 78 Cal.App.4th 562, 566 [“By failing to argue the contrary, plaintiffs concede this issue”].) In sum, the Court finds that the agreement contains both elements of procedural and substantive unconscionability, and since the unconscionability permeates the central purpose of the agreement, the Court exercises its discretion to refuse to enforce the agreement as a whole. Accordingly, Defendant’s motion to compel arbitration is DENIED. Moving party shall give notice.
113	Quinn vs. Valley Post-Acute And Rehab LLC 2025-01518740	Motion to Compel Deposition (Oral or Written) Plaintiff Harvey Quinn’s unopposed motion to compel the deposition of the Person Most Knowledgeable of defendant VPR Ops, LLC is GRANTED. The deposition is to take place at a mutually agreeable location within 45 days notice of this order, unless the parties agree otherwise. The court finds no substantial justification or other circumstances which make the imposition of the monetary sanctions unjust. The court therefore awards plaintiff reasonable expenses in the amount of \$1,210.00, payable by defendant VPR Ops, LLC within 20 days notice of this order, unless the parties agree otherwise. C.C.P. §§ 2023.010, 2023.030. Plaintiff is ordered to give notice.